

Prem Kishore Mehrotra v. State of U.P.

Allahabad High Court · Division Bench · 9 August 2010 · Writ-C No. 46443 of 2010 · **Writ disposed; consider tenant connection subject to formalities**

HEADNOTE

A tenant's shop-connection application was not accepted for want of landlord NOC. Invoking para 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, he sought mandamus to install supply. On the licensee's stand that a re-submitted application with a certified copy of the order would be accepted, formalities intimated within ten days, and connection installed on completion of those formalities, the Court disposed of the writ directing the respondents to consider grant of connection subject to fulfillment of all necessary requirements.

FACTUAL SUMMARY

The petitioner, a tenant of shop no. 308, Rani Mandi, Allahabad, applied on 15 July 2010 for an electricity connection. The distribution licensee refused to accept the application because the landlord had not given a no-objection certificate. A tenancy dispute with the landlord was pending. The petitioner contended that, absent landlord NOC, connection could still be granted under paragraph 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005, and that he was ready to complete all formalities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection without landlord NOC

HOLDING

Recording the licensee's stand that if the tenant-petitioner re-submits his shop-connection application (earlier not accepted for want of landlord NOC) with a certified copy of this order, the Executive Engineer shall accept it, intimate the formalities within ten days, and install the connection immediately on completion of those formalities, the Court disposed of the writ and directed the respondents to consider grant of electricity connection subject to fulfillment of all necessary requirements. The petitioner had invoked para 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARA 4.4 READ WITH ANNEXURE 4.2 ENTITLES A TENANT, WHOSE LANDLORD WITHHOLDS NOC AMID A PENDING TENANCY DISPUTE, TO A NEW CONNECTION WITHOUT OWNER CONSENT

Left to the Executive Engineer to consider on the re-submitted application subject to Supply Code formalities ¶ 1